

**BEFORE THE
FEDERAL MARITIME COMMISSION**

GLOBAL KINGS LOGISTICS/ KAMORDEEN A. GANIU, <i>Complainant,</i>	)	
	)	
	)	
v.	)	
	)	
MEDITERRANEAN SHIPPING COMPANY (USA) INC.	)	
	)	
	)	DOCKET NO. 26-09
<i>Respondent.</i>	)	
	)	

**RESPONDENT’S REPLY TO COMPLAINANT’S OPPOSITION TO
RESPONDENT’S MOTION TO DISMISS**

Respondent Mediterranean Shipping Company (USA) Inc. (“MSC USA” or “Respondent”) submits this reply to Complainant’s opposition (“Opposition”) to Respondent’s Motion to Dismiss (“Motion”).

As explained below, Complainant’s arguments misunderstand or misconstrue the arguments made in the Motion, are improper, or are irrelevant. Accordingly, the Motion should be granted.

I. Complainant Misunderstands The Motion To Dismiss

Complainant argues that MSC USA “attempts to avoid the proceeding by characterizing itself merely as an agent of another MSC carrier entity.” *See* Complainant’s Opposition at 4. This is incorrect. MSC USA does not attempt to avoid the issue or assert a passive agency theory. To the contrary, MSC USA’s Motion asserts that the Federal Maritime Commission (the “FMC” or

“Commission”) lacks personal jurisdiction over MSC USA because 46 U.S.C. § 41102(c) and 46 C.F.R. Part 545 specifically prohibit certain conduct by ocean common carriers, and MSC USA is not an ocean common carrier. *See* Motion at 2-3.

Motions to dismiss for a failure to state a claim focus solely on whether the complaint contains sufficient factual matter to “state a claim for relief that is plausible on its face.” *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007). Implicit in this requirement is that a motion to dismiss will focus on the sufficiency of the pleadings and whether the necessary elements of the claim are properly addressed in the complaint, not on the merits of the complainant’s arguments. *See Gociman v. Loyola Univ. Chi.*, 41 F.4th 873, 885 (7th Cir. 2022) (“[a]t the motion to dismiss stage for failure to state a claim, we test the sufficiency of the complaint, not the merits of the case.”). MSC USA is not seeking to avoid the merits of the case, but rather is seeking only to address the sufficiency of the Complaint with respect to those elements that are relevant for the Presiding Officer’s determination of whether the Complaint should be dismissed for a failure to state a claim.

Furthermore, the MSC party with which the Complainant communicated is not relevant to the determination of whether MSC USA is an ocean common carrier. Accordingly, Complainant’s arguments relating to MSC USA’s involvement in the conduct challenged by the Complaint is not relevant to whether the Commission has jurisdiction over MSC USA. The fact remains that MSC USA is not an ocean common carrier, and therefore the Motion should be granted and the Complaint dismissed because the Commission lacks personal jurisdiction over the Respondent.

Lastly, the submission of additional evidence in response to a motion to dismiss is improper, and all such evidence should be disregarded. *See Blakely v. Andrade*, 360 F. Supp. 3d 453, 472 (N.D. Tex. 2019) (“a court cannot look beyond the pleadings in deciding a 12(b)(6)

motion”). Even if the Presiding Officer chooses to admit Complainant’s additional evidence, this evidence does not support the argument that MSC USA is an ocean common carrier, and therefore does not change the fact that the Complaint should be dismissed.

II. Complainant’s Argument Regarding The Burden Of Proof Is Irrelevant

The allegation in the Complaint that Respondent has failed to meet its burden of proof is not a cognizable cause of action. The burden of proof applies once a proceeding has been commenced, not prior to the commencement of a proceeding. Failure by a litigant to meet its burden of proof in a proceeding can result in a determination adverse to that litigant with respect to the issue or claim with respect to which the litigant has failed to meet its burden. However, failure to meet a burden of proof is not in and of itself a violation of the Shipping Act.

To the extent Complainant argues that MSC USA fails to carry its burden of proof to establish that a motion to dismiss is warranted, as discussed in Section I above, the Complaint itself establishes that MSC USA is not an ocean common carrier, and therefore the Commission does not have jurisdiction over the Complaint. Complainant’s arguments relating to the role that MSC USA played in the underlying shipments, and the alleged lack of evidentiary record provided by MSC USA showing that “MSC USA was passive, disconnected, or uninvolved” are not relevant to MSC USA’s status as an entity not subject to the Shipping Act or to the Motion.

Complainant also appears to argue that the burden of proof for Section 41310 (charge complaints) should apply to this Section 41301 proceeding. MSC USA reiterates that the proper burden of proof for this proceeding is the burden of proof associated with a formal complaint, in which the Complainant bears the burden of proof of establishing that Respondent violated the Act. *See* 46 C.F.R. §502.203; *Maher Terminals v. The Port Authority of New York and New Jersey*, Docket No. 08-03, 2014 WL 9966245 at *14 (FMC 2014); *Muhammad Rana v. Michelle Franklin*,

Docket No. 19-03, 2020 WL 2538465 at *14 quoting *Director, Office of Workers' Comp. Programs v. Greenwich Collieries*, 512 U.S. 267, 281 (1994). As such, Complainant's arguments relating to the burden of proof in this proceeding are not relevant and should be disregarded.

III. Complainant's Arguments Regarding 46 C.F.R. Part 545 and 46 U.S.C. § 41104 Are Irrelevant

Complainant argues that its claims relating to 46 C.F.R. Part 545 are sufficient to withstand a motion to dismiss because 46 C.F.R. Part 545 reflects the Commission's interpretation of detention and demurrage practices under the Shipping Act, and are ultimately related to the prohibitions set forth in section 41104. While Part 545 relates to detention and demurrage, as stated in the Motion it imposes no substantive obligations on Respondent and therefore is not in and of itself a cause of action. Complainant's arguments here do not remedy the fatal flaw in its Complaint.

In explaining the importance of Part 545, Complainant attempts to shoehorn a new claim relating to Section 41104 into its Opposition. The Complaint asserts no claim relating to Section 41104, and the claim based solely on Part 545 should be dismissed.

IV. Limited Jurisdictional Discovery is Not Appropriate

There is no need for limited jurisdictional discovery to address the arguments in the Motion. The Complaint provides a more than sufficient basis upon which to conclude that MSC USA served as the agent, not the ocean common carrier, for the shipments at issue. See Complaint Exhibit D. Furthermore, the Presiding Officer is able to take judicial notice of all other information necessary to conclude that personal jurisdiction does not exist in this case, including the text of the applicable statutes and regulations, and the database of registered vessel operating common carriers maintained by the Commission.

V. Conclusion

For the foregoing reasons, the Complaint should be dismissed in full with prejudice.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is stylized with a large, looped 'W' and a cursive 'Rohde'.

Wayne R. Rohde
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Dated: July 13, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of July 2026, the foregoing Respondent's Reply to Complainant's Opposition to Respondent's Motion to Dismiss was served via electronic mail on:

Kamordeen A. Ganiu
info@gklshipping.com



Rachel Schwartz